

24STCV33455 24STCV33455

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Case Number: 24STCV33455 Hearing Date: August 17, 2026 Dept: 316

BACKGROUND

This case is a lemon law action.

On December 18, 2024, Plaintiff

Erika Yi filed a complaint against Defendant FCA US LLC. The complaint alleges three causes of action stemming from Plaintiff's purchase of an allegedly defective vehicle.

On November 5, 2025, the

parties advised the Court that a settlement in principle had been reached.

On May 11, 2026, Plaintiff

filed a Motion for Attorney's Fees.

On August 4, 2026, Defendant

filed an opposition.

That same day, Plaintiff

filed a reply.

TENTATIVE RULING

Plaintiff's Motion for

Attorney's Fees is GRANTED in part. The

Court will award Plaintiff \$26,758.70 in total fees and costs.

LEGAL STANDARD

Under the Song Beverly

Consumer Warranty Act, if a buyer prevails in the action, the buyer is allowed to recover costs and expenses, including attorney's fees based on actual time expended. (Civ. Code § 1794, subd. (d).)

The determination

of a reasonable amount of attorney fees is within the sound discretion of trial courts. (PLCM Group v. Drexler (2000) 22

Cal.4th 1084, 1095.) When assessing the amount of

any attorney's fee award, courts typically determine what

is reasonable through the application of the "lodestar" method. Under the

lodestar method, a base amount is calculated from a compilation of time reasonably spent and the reasonable hourly compensation of each attorney. (See Serrano v. Priest (1977) 20 Cal.3d 25, 48); see also Meister v. Regents of

University of California (1998)

67 Cal.App.4th 437, 448-449 [holding that the lodestar method applies to statutory attorney fees award unless the underlying statute provides for another method of calculation].)

A plaintiff's verified

billing invoices are prima facie evidence that the costs, expenses, and services listed were necessarily incurred. (See Hadley v. Krepel (1985)

167 Cal.App.3d 677, 682.) Counsel has the burden of providing the reasonable number of hours devoted to the litigation, through declarations, or redacted or unredacted timesheets or billing records. (See Concepcion

v. Amscan Holdings, Inc. (2014) 223 Cal.App.4th 1309, 1325.)

"[T]he verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous." (Horsford v. Board of Trustees of California State University (2005) 132 Cal.App.4th 359, 396.)

DISCUSSION

Here, Plaintiff

seeks \$39,694.95 in attorney's fees and costs. The Court will reduce this requested amount and award \$26,758.70 in total fees and costs.

Reasonable Rates

When considering each attorney's history, experience, and expertise, the Court finds the listed hourly rates reasonable.

There were two attorneys who did the bulk of the work on Plaintiff's case: Issac Kohen and Tamara Artolozaga.

Kohen bills at an hourly rate of \$575/hr. (Kohen Decl., Exh. 1.) Kohen is a graduate of North Western California University School of Law and is admitted to practice in California. (Id. at ¶¶ 21-22.) Kohen is the managing attorney of his own law firm. (Id. at ¶ 2.) In his career, Kohen has handled hundreds of lemon law and consumer rights cases. (Id. at ¶¶ 16-17.)

Artolozaga works at an hourly rate of \$375/hr. (Kohen Decl., ¶ 25.) Artolozaga is a graduate of Loyola Law School and is licensed to practice in California. (Id. at ¶ 18.) Lara has been a part of Kohen's law firm since she was admitted to the California bar. (Id. at ¶ 19.) Since then, Lara has largely handled lemon law cases for the firm. (Ibid.)

Furthermore, a survey of local lemon law and consumer rights attorneys shows that they charge hourly rates close, if not identical to Kohen and Artolozaga. (See Kohen Decl., ¶¶ 21-22.)

Given each attorney's history, experience, expertise, and similar rates from other comparable local attorneys, the Court finds counsel's hourly rates generally reasonable but will reduce counsel Kohen's rate to \$525 per hour. (See *PLCM Group v. Drexler*, 2000) 22 Cal.4th 1084, 1095.)

Reasonable Hours

The Court will award \$25,080 in attorney's fees.

Here, Plaintiff's counsel

allegedly spent 65.7 hours working on this case. This translates to \$34,437.50 in attorney's fees. (See Motion, p. 1:16-19.) Defendant requests the Court reduce or outright eliminate specific billing entries because they are unreasonable and excessive. (See Opp'n, pp. 8:9-12:25.) The Court considers certain specific entries below:

1.

Strike

Kohen's 11/29/24 and 12/02/24 time entries as pre-engagement work

.

Reduced

from 1.5 hours to 0 hours, equaling a reduction of \$862.5

2.

Reduce

Kohen's 12/3/24-12/4/24 time entry for research related to the vehicle and manufacturer

.

Reduced

from 5.3 hours to 3 hours, equaling a reduction of \$1,322.50

3.

Strike

Artolozaga's unsupported hours of work

.

Reduced

by 2.3 hours, equaling a reduction of \$862.50

4.

Reduce

Artolozaga's 7/11/25 time entries for drafting propounded discovery

.

Reduced

from 3.9 hours to 2 hours, equaling a reduction of \$525

5.

Reduce

Artolozaga's 8/12 and 8/13/25 time entries for reviewing discovery responses

.

Reduced

from 3.7 hours to 2 hours, equaling a reduction of \$637.50

6.

Reduce

Kohen's 5/8/26 and 5/11/26 time entries for time spent preparing this motion and accompanying documents

.

Reduced

from 8.5 hours to 4.5 hours, equaling a reduction of \$2,300

7.

Reduce

Kohen's anticipated time entry for drafting reply

.

Reduced

from 3 hours to 1.5 hours, equaling a reduction \$862.5

In sum, there will be a

total reduction of hours equating to a reduction of \$7,372.50.

In addition, the total

hours allowed for counsel Kohen are 39.7. The rate reduction of \$50 per hour leads to an additional reduction in fees of \$1,985.

Therefore, Plaintiff will be

awarded \$25,080 in attorney's fees.

Costs Incurred

Here, Defendant also

requests the Court reduce, or outright eliminate, all unsubstantiated costs because

they are either unnecessary or unreasonable. (See Opp'n, p. 16:1-22.)

The only cost that the Court will strike is the estimated \$135 for messenger services because said cost has not yet actually been incurred. (See Kohen Decl., Exh. 2.)

Accordingly, the Court will only strike \$135 of the total costs amount. It finds the remaining costs to be reasonable.

IV.

Lodestar

Multiplier

The Court will not apply a lodestar multiplier.

Once the court determines the total lodestar amount, said amount may be adjusted through the consideration of various factors, including "(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, and (4) the contingent nature of the fee award." (Ketchum v. Moses, (2001) 24 Cal.4th 1122, 1132.)

Here, Plaintiff requests a lodestar multiplier of 1.1 because of the contingent nature of this case, the length of the case, the preclusion of other employment, counsel's display of skill/experience, and the results achieved. (See Motion, pp. 10:15-11:21.) However, based on the non-complexity of this case and the relatively early resolution, the Court does not find the multiplier reasonable or necessary. Therefore, the Court will not apply Plaintiff's requested 1.1 lodestar multiplier. This will reduce the total amount by \$3,443.75.

CONCLUSION

For these reasons, Plaintiff's Motion for Attorney's Fees is GRANTED.

In light of the reductions set forth above, the Court will award Plaintiff \$26,758.70 in total fees

and costs.